



abortion remains a moral and political issue that still divides opinion. The feminist case is that abortion is fundamentally a question of women's rights—that abortion is as much a right as free speech—and a critical weapon in the fight for women's equality.

Feminists ask why only women should suffer the consequences of an unwanted pregnancy, with not just their lives but those of their child potentially blighted. They point, too, to the undeniable fact that there will always be unwanted pregnancies and so there will always be abortions, regardless of whether abortion is lawful or not—and illegal abortions are far more likely to go wrong and, therefore, are far more likely to place the mother's life at risk.

Pro-life

The classic counter is that abortion is murder—that from the moment of conception, a fetus is a unique human life. In 2017, American conservative commentator Ben Shapiro made the case simply: "It is a violation of moral law to

kill another human being. Which is why we have murder laws." Both sides of the debate claim to have the science on their side. Those against abortion say that the DNA signature of any fetus is immediately clear from conception and that ultrasound technology makes it clear that a fetus is a human being capable of feeling pain. Other clinicians say that the fetus cannot feel pain until 24 weeks of pregnancy. In 2018, American journalist Jennifer Wright insisted, "A fetus's right to life is debatable. A woman's is not."

The political divide

When the *Roe v. Wade* ruling was made, it highlighted a clear divide between pro-abortion Democrats and anti-abortion Republicans. The ruling is still in effect but, in 2017, there were howls of Democrat outrage when President Donald Trump nominated conservative Brett Kavanaugh for the Supreme Court. Democrats suspected Kavanaugh was appointed to help fulfill the president's 2016 election campaign pledge to reverse the ruling.

Campaigners protest against the proposed 2019 Human Life Protection Act in Alabama, which would have, in essence, outlawed abortion. It was ultimately deemed contrary to the 1973 Supreme Court ruling.

Despite attempts made by several states to reintroduce anti-abortion legislation, including Alabama in 2019, all efforts to date have been blocked, with all Supreme Court judgments since 1973 backing the original ruling. Although the Hyde Amendment enacted by Congress in 1976 barred federal funding for abortions, two key judgments by the Supreme Court—*Planned Parenthood v. Casey* in 1992 and *Whole Woman's Health v. Hellerstedt* in 2016—emphatically reinforced the 1973 ruling of *Roe v. Wade*.

Around the world, as of 2020, about 60 percent of women of reproductive age live in countries where abortion is legal. For the remainder, it is either banned entirely or practiced only when a woman's life or health are at risk. The divisions highlighted by the abortion debate remain essentially irreconcilable. ■

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Alabama's abortion ban ... diminishes the capacity of women to act in society and to make reproductive decisions.

Judge Myron Thompson

commenting on the Human Life Protection Act, 2019

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